



Copyright (Amendment) Act 1971

1971 CHAPTER 4

An Act to amend the Copyright Act 1956 so as to make provision for the subsequent variation by the Performing Right Tribunal of orders made pursuant to section 27 of that Act. [17th February 1971]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For the purpose of making provision for the subsequent variation by the Performing Right Tribunal of orders made by the tribunal under section 27 of the Copyright Act 1956— Amendments to 1956 c. 74.

(a) Part IV of that Act shall have effect as if there were included after section 27 the following further section:—

“Applica-
tions for
review by
tribunal
of orders.

27A.—(1) Where the tribunal has made an order under subsection (5) of the last preceding section, then subject to the next following subsection, at any time while the order remains in force,—

(a) the licensing body in question, or

(b) the original applicant

may apply to the tribunal to review its original order.

(2) An application shall not be made pursuant to subsection (1) of this section, except with the special leave of the tribunal, at a time earlier than—

(a) the end of a period of twelve months beginning with the date on which the original order was made, in the case of an order made so as to be in force indefinitely or for a period exceeding fifteen months, or

(b) the beginning of the period of three months ending with the date of expiry of the order in the case of an order made so as to be in force for fifteen months or less.

(3) The parties to an application under this section shall be—

(a) the parties to the original application proceedings; and

(b) any organisation or person who is made party thereto pursuant to subsection (5) of this section.

(4) The tribunal, on any application under this section, after giving all the parties an opportunity of presenting their cases shall make such order in relation to the application either by way of confirming or varying the order in question as—

(a) in the case of an order made pursuant to an application under subsection (2) of the last preceding section, the tribunal may determine to be applicable in accordance with the licence scheme, or

(b) in the case of an order made pursuant to an application under subsection (3) of the last preceding section, the tribunal may determine to be reasonable in the circumstances.

(5) Subsection (4) of section 27 (applications by organisations and persons to be made party to proceedings) shall apply in relation to proceedings under this section as it applies in relation to proceedings under that section.

(6) The preceding provisions of this section shall have effect in relation to orders made under this section as they have in relation to orders made under the last preceding section."

(b) In subsection (3) of section 29 of the Act there shall be inserted after the word "twenty-seven" the words "or section twenty-seven A".

Short title
and extent.

2.—(1) This Act may be cited as the Copyright (Amendment) Act 1971.

(2) It is hereby declared that this Act extends to Northern Ireland.